

Tentative Rulings for July 16, 2026 Department 10

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 10 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 888 5460**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2504281	LIMONITE C&C VS EL RODEO CAFE CORP	DEMURRER ON CROSS-COMPLAINT OF ORLANDO CASTELLON

Tentative Ruling:

The Court continues the hearing to October 22, 2026, at 8:30 a.m. Before filing a demurrer, the moving party **shall** meet and confer, **at least 5 days before a responsive pleading is** due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§430.41, subd. (a), 435.5, subd. (a)(1)-(2).) The moving party must file a declaration stating how the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., § 430.41, subd. (a)(3).) The parties failed to comply as only emails were exchanged. (Montez Decl., ¶¶6-10.) This is not Code-compliant.

The Court **ORDERS** Defendants to meet and confer in person, or via phone or videoconference with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer and motion to strike. As part of the meet and confer process, Defendants shall identify the specific causes of action that it believes are subject to demurrer and motion to strike and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendants shall, 10 days before the continued hearing date, set do one of the following: (1) vacate the hearing on the demurrer, and file an Answer; (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended complaint before the next hearing date; or (3) file with the court a declaration stating the means by which the parties met and conferred and identify the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a).)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504281	LIMONITE C&C VS EL RODEO CAFÉ CORP	MOTION TO STRIKE COMPLAINT ON CROSS-COMPLAINT OF ORLANDO CASTELLON

Tentative Ruling:

See above.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2401463	QUILLMAN VS BEATTY	MOTION TO SET ASIDE

Tentative Ruling:

The Court denies the Motion to Set Aside without prejudice as there is no evidence that Plaintiff's counsel was appropriately served with the Motion.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2304863	CABANAS ALMAZAN VS AMERICAN HONDA MOTOR	MOTION TO STRIKE OR IN THE ALTERNATIVE, TAX COSTS BY AMERICAN HONDA MOTOR

Tentative Ruling:

The Court GRANTS, in part, Defendant's Motion to Strike or Tax Costs for the following items: Item 1 (Filing Fees): \$60.00 (anticipated attorney fees motion filing); Item 8(b) (Expert Fees): \$850.00 (cancellation and late notice charges); Item 13 (Other Costs – Travel): \$4,174.92 (lodging only); and Item 13 (Other Costs - Court Appearance Professionals): \$75.00, for a total of \$5,159.92. The Court DENIES as to all other challenged costs. Plaintiff is entitled to recover costs in the reduced amount of \$45,193.22 (\$50,353.14 – \$5,159.92).

Defendant challenges a total of \$43,791.04 in costs. Each category is addressed as follows:

a. Filing Fees (Item 1)

Plaintiff claims \$570.00 in filing and motion fees, including \$450.00 for the Complaint filing, \$60.00 for an Ex Parte to Continue Trial, and \$60.00 for an anticipated Motion for Attorney Fees. Defendant challenges the latter two amounts totaling \$120.00, arguing that these items lack documentation and that anticipated costs are not recoverable.

Filing fees are recoverable under CCP § 1033.5(a)(1), which provides that "[f]iling, motion, and jury fees" are allowable as costs. (CCP § 1033.5(a)(1).)

Ex Parte to Continue Trial (\$60.00). Plaintiff's opposition demonstrates the Ex Parte to Continue Trial was reasonably necessary because it resulted from Defendant's repeated cancellations of vehicle inspections that prevented expert depositions from going forward timely before the January 2, 2026 trial date. (Devabose Decl. ¶ 5, Ex. B.) Defendant's challenge is further undermined by the fact that Defendant was supposed

to draft a joint stipulation to continue trial prior to the ex parte but never did. (*Id.*) The Court finds that this filing fee was reasonably necessary to the conduct of the litigation. The expense was expressly allowable by statute, and Plaintiff showed the circumstances necessitating the filing. Thus, the Court DENIES the motion with respect to the \$60.00 Ex Parte filing fee.

Anticipated Motion for Attorney Fees (\$60.00). Anticipated or future costs that have not yet been incurred are not recoverable. As of the May 26, 2026 filing date of the Memorandum of Costs, Plaintiff had not yet incurred the filing fee for the Motion for Attorney's Fees. A memorandum of costs must be based on costs actually incurred, not those anticipated to be incurred. Thus, the Court GRANTS the motion with respect to the \$60.00 anticipated filing fee.

b. Service of Process (Item 5)

Plaintiff claims \$364.17 for service of process on COR Riverside Honda and \$289.00 for service of process on Spreen Honda Loma Linda, totaling \$653.17. Defendant challenges these costs based on lack of documentation and unclear necessity.

Service of process fees are recoverable under CCP § 1033.5(a)(4), which provides that "[s]ervice of process by a public officer, registered process server, or other means" is allowable as a cost. (CCP § 1033.5(a)(4).)

In opposition, Plaintiff submitted invoices for these services. (Devabose Decl. ¶ 6, Ex. C.) Plaintiff also explained the necessity: Defendant regularly refuses to stipulate to the authenticity of repair orders, so Plaintiff had to ensure Custodians of Records were ready to testify at trial or at least have declarations authenticating the repair orders to lay requisite foundation for authenticity and admissibility of basic repair orders at trial. (See Pl.'s Opp. 8:2–12.) The expense was expressly allowable by statute, and Plaintiff showed the circumstances necessitating the service. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131–32.) Having provided supporting invoices and a reasonable explanation of necessity, Plaintiff has met her burden. Thus, the Court DENIES the motion with respect to these costs.

c. Expert Fees (Item 8(b))

Plaintiff claims \$1,110.00 for Thomas Lepper, dated November 1, 2024. Defendant initially challenged these costs based on insufficient documentation. In reply, Defendant points to specific line items: \$350.00 for "Attorney Consulting – VI cancelled less than 24 hours" and \$500.00 for "Late Cancellation Fee." (Def.'s Reply 4:21–25.) Defendant argues that while expert witness fees may be recoverable, cancellation fees and late notice charges are not.

CCP § 1033.5(b)(1) provides that expert witness fees are not allowable as costs except when expressly authorized by law. In *Jensen*, the Court of Appeal expressly

holds that expert witness fees are recoverable under the Song-Beverly Act even though CCP § 1033.5 states they are not recoverable unless ordered by court. (*Jensen, supra*, 35 Cal.App.4th at 138.) The legislative history indicates that the Legislature intended to permit the recovery of expenses such as expert witness fees by prevailing buyers under the Act. (*Id.*)

Plaintiff submitted Thomas Lepper's invoices in opposition. (Devabose Decl. ¶ 7, Ex. D.) Expert fees were for services rendered as a result of Defendant's litigation of this case, including initial review of the repair history and analysis prior to a vehicle inspection that Defendant cancelled.

However, Defendant's reply arguments have merit. While expert fees for substantive work—reviewing documents, analyzing repair history, preparing for testimony—are recoverable under *Jensen*, cancellation fees and late notice charges do not fall within that category. (*Jensen, supra*, 35 Cal.App.4th at 138.) These are penalty charges imposed by the expert for the cancellation itself, not compensation for work performed in connection with the commencement and prosecution of the action. While Defendant may have caused the cancellation, Plaintiff has not demonstrated that such penalty charges are “reasonably incurred” costs recoverable under Civ. Code § 1794(d). The remaining expert fees (\$260.00) represent actual work performed by the expert and are recoverable. Thus, the Court GRANTS the motion in part as to this item and tax \$850.00 in cancellation and late notice charges.

d. Models, Blowups, and Photocopies (Item 11)

Plaintiff claims \$2,831.16 for “B&W Printing/Tabs/Binders/Messenger.” Defendant challenges this amount based on lack of itemization or receipts.

CCP § 1033.5(a)(13) provides that “[m]odels and blowups of exhibits and photocopies of exhibits may be allowed if they were reasonably helpful to aid the trier of fact.”

In opposition, Plaintiff provided the invoice for these costs. (Devabose Decl. ¶ 8, Ex. E.) Plaintiff explained these costs were incurred to create binders, exhibits, and boxes for use at trial. (*Id.*) While the parties displayed trial exhibits digitally, the witnesses, Judge, Court Clerk and both counsel still required physical binders and copies of exhibits in case there were technical issues with computer displays or counsel needed to display something using the ELMO. (Pl.'s Opp. 10:22–28.) The Court Clerk had to submit a binder to the jury of all admitted exhibits for the jury to review during deliberation. (*Id.* at 11:1–2.) To the extent messenger costs are included, courts have upheld messenger fees when related to trial preparation, filing documents with the court, and transporting exhibits to and from the courtroom. (*Ladas, supra*, 19 Cal.App.4th at 776.) Having provided supporting documentation and a reasonable explanation of necessity, Plaintiff has met her burden. (*Nelson, supra*, 72 Cal.App.4th at 131–32.) Thus, the Court DENIES the motion with respect to these costs.

e. Court Reporter Fees (Item 12)

Plaintiff claims a total of \$22,649.26 for fees from Steno Agency Inc. for trial dates in January and February 2026. Defendant challenges these costs based on lack of invoices or additional description supporting reasonableness.

CCP § 1033.5(a)(11) provides that “[c]ourt reporter fees as established by statute” are allowable as costs.

In opposition, Plaintiff submitted invoices. (Devabose Decl. ¶ 9, Ex. F.) Plaintiff explained that Riverside County has long since stopped providing official court reporters, so parties must arrange for their own court reporters if they wish for proceedings to be transcribed. (Pl.’s Opp. 11:24–12:8.) Under Gov. Code § 68086(d)(2), “if an official court reporter is not available, a party may arrange for . . . a certified shorthand reporter to serve as an official pro tempore reporter,” and “[t]he fees . . . **shall be recoverable as taxable costs by the prevailing party.**” (Gov. Code § 68086(d)(2) [emphasis added].) The expense was expressly allowable by statute, and Plaintiff showed the circumstances necessitating the expense. (*Nelson, supra*, 72 Cal.App.4th at 131–32.) Having provided supporting invoices and explained the necessity and statutory basis for these costs, Plaintiff has met her burden. Thus, the Court DENIES the motion with respect to these costs.

f. Other Costs (Item 13)

Plaintiff claims \$16,427.45 in other costs. Defendant challenges all of these costs, arguing that they were not reasonably necessary, reasonable in amount, or properly documented.

Attorney Services and Messenger (\$424.38). Plaintiff claims \$424.38 in attorney services and messenger fees. Although courier or messenger fees are not specifically enumerated in CCP § 1033.5(a), they are not prohibited in subdivision (b), and may be recoverable in a trial court’s discretion if reasonably necessary to the conduct of the litigation under subdivision (c)(4). In *Ladas*, a messenger fees award was upheld because sufficient evidence indicated they “were related to trial preparation, and were incurred for such matters as filing documents with the court, complying with appellants’ document demands, and transporting exhibits to and from the courtroom.” (*Ladas, supra*, 19 Cal.App.4th at 776.)

Plaintiff incurred attorney service and messenger fees for filing court documents such as the Complaint, Case Management Statements, and various trial documents. (Devabose Decl. ¶¶ 4, 10, Exs. A & G.) Under the Song-Beverly Act, these costs are further justified because each of the court filings occurred during the “prosecution of such action.” (Civ. Code § 1794(d).) Plaintiff argues that it was reasonable for her counsel to use lower-cost attorney services to file documents rather than sending an attorney to personally file documents while incurring a lodestar hourly rate for travel. (Pl.’s Opp. 12:23–28.) Thus, the Court DENIES the motion with respect to this cost.

Travel (\$8,298.32). Plaintiff claims \$8,298.32 in travel expenses, including lodging, mileage, meals, and parking. While CCP § 1033.5(a)(3)(C) permits reimbursement of “travel expenses to attend depositions,” Plaintiff does not identify any segregated portion of the claimed travel costs as specifically incurred for deposition attendance. Although *Jensen* recognizes that Song-Beverly permits recovery of both “costs” and additional “expenses” (*Jensen, supra*, 35 Cal.App.4th at 137), the Court must still determine whether the claimed expenses were “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (CCP § 1033.5(c)(2); see also *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682–83.)

In opposition, Plaintiff argues that her counsel is primarily based in Los Angeles and necessarily had to find lodging near the Court for trial and rely on local restaurants for meals throughout trial. (Pl.’s Opp. 13:15–23.) Plaintiff contends that “[t]hese nominal travel expenses were reasonably incurred in the ‘commencement and prosecution’ of this action.” (*Id.* at 13:19–20.) While Plaintiff is entitled to select counsel of her choice, the statutory question remains whether overnight lodging was reasonably necessary given the approximate one-hour distance between Los Angeles and Riverside. The Court finds that daily commuting was feasible under these circumstances. The lodging expenses totaling \$4,174.92 were more convenient than reasonably necessary to the conduct of the litigation. The remaining expenses—mileage, meals during trial, and parking—totaling \$4,123.40, represent reasonable incidents of counsel’s daily travel to and participation in trial. Thus, the Court GRANTS the motion in part as to travel costs and tax \$4,174.92 in lodging expenses, allowing the remaining \$4,123.40.

Interpreter Services (\$5,594.75). Plaintiff seeks \$5,594.75 for interpreter services throughout trial. Plaintiff required the interpreter both for her own testimony and to understand the proceedings during trial. Plaintiff provided supporting invoices and an itemized internal spreadsheet documenting each interpreter expense. (Devabose Decl. ¶¶ 4, 10, Exs. A & G.) Plaintiff explains that she best understood and spoke Spanish. Defendant challenges these costs based solely on lack of documentation. However, Plaintiff has provided the documentation Defendant claims is missing. Having provided supporting documentation and explained the necessity, Plaintiff has met her burden. (*Nelson, supra*, 72 Cal.App.4th at 131–32.) Thus, the Court DENIES the motion with respect to this cost.

Court Appearance Professionals (\$75.00). Plaintiff seeks \$75.00 for a professional appearance attorney service to appear at a single Order to Show Cause hearing on Plaintiff’s counsel’s behalf. Plaintiff provided supporting documentation, including an itemized spreadsheet and receipt. (Devabose Decl. ¶¶ 4, 10, Exs. A & G.) Plaintiff argues that the appearance was reasonably necessary and that using a local appearance attorney at a fixed third-party rate of \$75.00 was more economical than having her Los Angeles-based counsel appear personally. While Song-Beverly permits recovery of “costs and expenses” reasonably incurred in the prosecution of the action, Plaintiff has not demonstrated why counsel’s personal appearance at this hearing was infeasible or why a telephonic or remote appearance was unavailable. Allowable costs

must be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (CCP § 1033.5(c)(2).) Here, Plaintiff has made no showing that this expense was reasonably necessary rather than merely convenient. Thus, the Court GRANTS the motion with respect to this cost.

Other - Touch Device Rental (\$2,035.00). This charge is for the device the Court requested from the court reporter so it could view the “realtime” transcription from day 2 of trial all the way through Verdict on day 11 of trial. (Pl.’s Opp. 14:17–20.) Plaintiff seeks only the cost of renting the device the Court requested from the court reporter. (*Id.* at 14:26–28.) Having provided supporting documentation (Devabose Decl. ¶¶ 4, 10, Exs. A & G), these costs are recoverable under the expanded recovery scheme under Civ. Code § 1794(d), and are reasonably necessary. (*Nelson, supra*, 72 Cal.App.4th at 131–32.) Thus, the Court DENIES the motion with respect to this cost.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2200196	SPANN VS BANKERS INSURANCE COMPANY	RENEWED MOTION FOR DISCOVERY PURSUANT TO EVIDENCE CODE § 1043 ET SEQ. (PITCHESS)

Tentative Ruling:

The Court GRANTS in part the *Pitchess* motion as to Officer Arden’s taser-related complaint, review, certification, recertification, and training deficiency and corrective records. The Court DENIES the motion as to the remaining records for failure to establish the existence of new or different facts to support a renewed motion.

Here, the Court denied the prior *Pitchess* motion, which Plaintiffs now renew to seek relief again. Accordingly, Plaintiffs must demonstrate new or different facts, circumstances or law. (C.C.P. § 1008(b).)

Plaintiffs argue that officer testimony and evidence presented at Herrera’s criminal trial, which was not held until after their initial *Pitchess* motion was denied, constitute new facts to support this renewed *Pitchess* motion.

A. Herrera’s Pre-Arrival Communications with PSPD

Plaintiffs contend that dispatch recordings and Officer Arden’s testimony now establish that Officer Arden was informed that Herrera was a “fugitive recovery agent” before Decedent called PSPD for help during the encounter, but that Officer Arden “apparently fell victim to Herrera attire” and may contend that he “believed Herrera was law enforcement or part of a lawful police operation.” (Reply, pp. 2-4.) However, the

evidence shows that these are not “new facts,” as Plaintiffs were in possession of these facts at the time they filed their prior *Pitchess* motion.

“[F]acts of which the party seeking reconsideration [or renewal] was aware at the time of the original ruling are not ‘new or different’” facts to support a motion under C.C.P. § 1008. (*In re Marriage of Herr* (2009) 174 Cal.App.4th 1463.) Here, the evidence shows that Plaintiffs were aware that PSPD had been informed that Herrera was a fugitive recovery agent prior to Decedent’s 911 call at the time that their initial *Pitchess* motion was heard on March 18, 2025. Specifically, Exhibit 1 to the FAC, which is a copy of the Court’s Order Holding Defendant [Herrera] to Answer as Charged in the Complaint, states: “Shortly after 1:45 a.m. on Thursday, April 23, 2021, defendant [Herrera] contacted the Palm Springs police department to notify them that he would be attempting to apprehend Spann at Spann’s residence in Palm Springs. Defendant identified himself in the call as a fugitive apprehension agent... Approximately 25 minutes later, Spann contacted 9-1-1 and reported that someone was attempting to break into his residence. An on-duty police sergeant monitoring radio calls correctly concluded that defendant’s and Spann’s calls were related. She therefore caused a call to be placed to defendant at or around 2:15 a.m. Defendant did not answer, but shortly thereafter he called back to Palm Springs police requesting emergency assistance.” (FAC, Exh. 1, pp. 6-7.) Exhibit 1 further states, “The court also concludes that while defendant’s impersonation of a law-abiding BFRP [Bail Fugitive Recovery Person] did not fool Spann, it apparently convinced Arden. This is not surprising given defendant’s calls in advance to Palm Springs police, his law enforcement-style uniform, his repeated references to an arrest warrant, his law enforcement-like references to ‘a partner,’ and his law enforcement-like manner in holding Spann at gunpoint. Defendant’s quick grasp and understanding of the term ‘lethal’ also gave Arden no reason to believe that defendant lacked the authority to do what he was doing.” (FAC, Exh. 1, pp. 20-21.)

Accordingly, Plaintiffs’ own evidence shows that they knew of the facts that Herrera had informed PSPD of the fact that he was a fugitive recovery agent prior to Decedent’s 911 call, and that Herrera’s call to the PSPD possibly contributed to Arden’s belief that Herrera was a BFRP at the time of the encounter. As such, Plaintiffs fail to establish that Herrera’s pre-arrival communications with PSPD constitute “new facts” to support a renewed motion.

B. Officer Arden’s Taser Testimony

Plaintiffs then argue that Officer Arden’s trial testimony that he has never had a Taser work constitutes a new fact that supports their request for Taser-related training and certification records, which they allege are “material both to the Bane Act intent element and to impeachment of any contrary defense characterization.” (Motion, p. 11.) Although Plaintiffs’ prior motion sought training records regarding deploying a taser, there is no evidence that Plaintiffs knew of Officer Arden’s prior experiences with a taser at that time. Thus, Officer Arden’s taser testimony constitutes “new facts” sufficient to support a renewed motion for taser-related training records.

C. Officer Arden's Lethal Coverage Testimony

Plaintiff presents trial testimony in which Officer Arden explains that he asked Herrera whether he had “lethal” [coverage] “in case the taser doesn’t work.” Plaintiff argues that this testimony as to why Officer Arden requested lethal coverage constitutes “new facts” because it establishes that Officer Arden “deployed a taser that he admitted was ineffective in this incident and had never worked for him in prior deployments.” (Reply, p. 5.)

However, Officer Arden’s testimony does not establish that he knew that his particular taser was ineffective before he deployed it. Rather, Officer Arden’s trial testimony states, “Now, I want to try to avoid somebody getting shot. So I’m thinking, is there a better way or maybe there’s another way we could handle this. That’s why I pulled out my Taser. But before I do that, I want to make sure my partner is going to have that lethal coverage for me in case the Taser doesn’t work or he continues to advance before I get my Taser to deploy.” (Crim. Feb. 26, 2026 Tr., 34:5-11.) However, as noted above, Officer Arden’s taser testimony constitutes new facts sufficient to renew this *Pitchess* motion for Officer Arden’s taser-related records.

D. Sheriff Investigator Bishop's Testimony

Lastly, Plaintiff argues that Sheriff Investigator Jarred Bishop’s testimony establishes that the encounter was a law-enforcement use-of-force or constructive-custody death, and therefore constitutes new facts to support a renewed motion.

However, Investigator Bishop’s testimony merely states that PSPD specifically requested the Sheriff’s Department and FID [Force Investigation Department] “to assume an investigation that occurred at that location because it involved the use of force and then ultimately the death of an individual in the presence of law enforcement,” a request that was standard in Riverside County. (Crim. Feb. 25, 2026 Tr., 18:12-20.) Investigator Bishop then testified that the “use of force” also includes the use of “less lethal options, in this case, a Taser or a baton, or they may end up using lethal force and shoot at or shoot somebody.” (Crim. Feb. 25, 2026 Tr., 18:24-19:1.) When asked what “death of an individual in police custody” or “police presence” meant, Investigator Bishop replied that “constructive custody” means that “somebody wasn’t in handcuffs or in the back seat of a police vehicle. But they -- the law enforcement was present at the time that somebody, unfortunately, died. And so that’s another factor why they called us.” (Crim. Feb. 25, 2026 Tr., 19:3-11.)

Here, Investigator Bishop’s testimony does not establish any new facts. At the time that Plaintiffs filed their initial *Pitchess* motion, Plaintiffs were aware that a taser was used, and that officers were present when Decedent died. The fact that the Sheriff’s Department refers to these events as “use of force” or “constructive custody” does not establish any new facts to support a renewed motion.

Given the above, Plaintiffs have only established the existence of new facts to renew the *Pitchess* motion as to Officer Arden's taser-related records.

I. *Pitchess* Motion

A motion to discover a law enforcement officer's personnel file or other police agency record that contains relevant information is called a *Pitchess* motion. (*Pitchess v. Sup. Ct.* (1974) 11 Cal.3d 531, 536–40.) The *Pitchess* motion has been partly codified in Evid. Code § 1043, which makes law enforcement personnel records privileged and subject to disclosure only by noticed motion. (Evid. Code § 1043; Pen. Code § 832.7(a).) The statutory scheme governing *Pitchess* motions is set forth in Evid. Code §§ 1043–1047 and Pen. Code §§ 832.5, 832.7, 832.8. (*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) These statutes provide the exclusive means of discovery of such records in both criminal and civil proceedings. (*Cnty. of Los Angeles v. Sup. Ct.* (1990) 219 Cal.App.3d 1605, 1609–10.)

“Under the statutory scheme, a party seeking discovery of a peace officer's personnel records must follow a two-step process. First, the party must file a written motion describing the type of records sought, supported by affidavits showing good cause for the discovery . . . , setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records. This initial burden is a ‘relatively relaxed standard.’ Information is material if it will facilitate the ascertainment of the facts and a fair trial. A declaration by counsel on information and belief is sufficient to state facts to satisfy the ‘materiality’ component of that section.” (*Haggerty v. Sup. Ct.* (2004) 117 Cal.App.4th 1079, 1085–86 [internal quotations omitted].)

“Second, if the trial court concludes [a party] has fulfilled these prerequisites and made a showing of good cause, the custodian of records should bring to court all documents ‘potentially relevant’ to the [requesting party's] motion The trial court ‘shall examine the information in chambers, out of the presence and hearing of all persons except the person authorized to possess the records and such other persons the custodian of records is willing to have present Subject to statutory exceptions and limitations . . . the trial court should then disclose to the defendant such information that is relevant to the subject matter involved in the pending litigation.” (*Haggerty, supra*, 117 Cal.App.4th at 1086 [internal quotation marks & quotations omitted].)

Peace officer personnel records are presumptively confidential and protected from disclosure. (Pen. Code § 832.7; Evid. Code §§ 1040(b), 1043(a).) To obtain such records, the moving party must file a written motion supported by declarations demonstrating good cause, including a “specific factual scenario” establishing a “plausible factual foundation” for the alleged officer misconduct. (*City of Santa Cruz v. Municipal Ct.* (1989) 49 Cal.3d 74, 85; Evid. Code § 1043(b)(3).) The declaration must: (1) set forth facts reasonably supporting the claim of officer misconduct, (2) propose a legal theory related to the alleged misconduct, and (3) explain how the requested

records may lead to relevant evidence or be admissible as direct or impeachment evidence. (*Warrick v. Sup. Ct.* (2005) 35 Cal.4th 1011, 1024–25.) Conclusory or boilerplate assertions of relevance are insufficient. (*People v. Collins* (2004) 115 Cal.App.4th 137, 151; *City of San Jose v. Sup. Ct.* (1998) 67 Cal.App.4th 1135, 1146–47.) The requesting party must clearly articulate how the records relate to the litigation and cannot rely on speculation. (*People v. Memro* (1985) 38 Cal.3d 658, 682, overruled on unrelated grounds by *People v. Gaines* (2009) 46 Cal.4th 172, 181, fn. 2.)

Good cause must be sufficiently specific to preclude the possibility of merely seeking helpful information. (*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) The moving party only needs to show a plausible factual foundation for discovery. (*Warrick, supra*, 35 Cal.4th at 1019.) All that is required is the presentation of a scenario that may have or could have occurred, which is a relatively low threshold. (*Uybungco v. Superior Court* (2008) 163 Cal.App.4th 1043, 1048.) An attorney declaration based upon information and belief and containing hearsay may be used to evidence good cause in support of a *Pitchess* motion. (*Haggerty v. Superior Court.* (2004) 117 Cal.App.4th 1079, 1086.)

“Good cause for discovery exists when the defendant shows both ‘ ‘ ‘materiality’ to the subject matter of the pending litigation and a ‘reasonable belief’ that the agency has the type of information sought.’ ” [Citation.] A showing of good cause is measured by “ ‘relatively relaxed standards’ ” that serve to “ ‘insure the production’ ” for trial court review of “ ‘all potentially relevant documents.’ ” (*Warrick, supra*, 35 Cal.4th at 1016.) It “is a ‘relatively low threshold for discovery.’ ” (*Id.* at 1019.)

As noted above, Plaintiffs have only established the existence of new facts to renew the *Pitchess* motion as to Officer Arden’s taser-related records. Specifically, Plaintiffs seek “1. Prior Force / Taser-Related Complaint and Review Records: Records concerning Officer Arden’s prior taser deployments or other prior uses of force during calls for service, to the extent such records are maintained in personnel, complaint, internal affairs, disciplinary, or related evaluative files...4. Taser Certification and Recertification Records: All records reflecting Officer Arden’s initial taser certification, annual or periodic taser recertification, remedial taser training, suspension or lapse of certification, and/or documented failure to meet taser qualification standards...[and] 5. Training Deficiency and Corrective Records: Any records contained within the personnel or training files of Officers Arden and Kramer reflecting documented training deficiencies, corrective action, counseling memoranda, or remedial instruction relating to use of force, electronic control device deployment, de-escalation, tactical coordination, or post-force response.” (Notice, pp. ii-iii.)

“California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. [Citation.]” (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.)

Here, Officer Arden's taser-related complaint and review records, taser certification and recertification records, and training deficiency and corrective records are all relevant to Plaintiffs' a claim for negligent training, which it alleges that City is vicariously liable for. (FAC, ¶ 72-75.)